

		However, with respect to the contact information of percipient witnesses, “a percipient witness's willingness to participate in civil discovery has never been considered relevant—witnesses may be compelled to appear and testify whether they want to or not.” (<i>Id.</i> at 1251-1252.) Accordingly, the court finds that the requested discovery does not implicate any privacy concerns that should limit discovery. RFP No. 39 seeks: “DOCUMENTS sufficient to describe the job duties and responsibilities of all TaxRise tax relief-related job positions (e.g., “financial analyst,” “case manager,” “resolution officer”) that have existed at any time during the APPLICABLE PERIOD.” Plaintiff contends that the requested information is relevant to identifying percipient witnesses as knowing the duties assigned to each tax relief-related position will allow Plaintiff to determine which categories of employees are likely to possess discoverable information regarding representations, training, call recording practices, refund policies, and compliance efforts. Plaintiff also contends that the requested information is relevant to class certification concerning whether the alleged misconduct is the product of uniform policies and practices or individualized exercises of discretion. Plaintiff argues that the requested information is also relevant to the liability of individual officers and managers as it is likely to reveal who participated in, authorized, and directed Defendants’ alleged misconduct. Defendant argues that RFP Nos. 38 and 39 are overbroad. However, the requests are limited to employees “who had a role in TaxRise’s tax relief services” and held “tax relief-related job positions.” The court finds that Plaintiff has established good cause for the discovery and a further response is required. Plaintiff is ordered to give notice of this ruling.
16	30-2025-01533351 Bell vs. Veracity Research Co., L.L.C.,	Defendant Veracity Research Co., L.L.C.’s motion to compel arbitration is GRANTED. Plaintiff Tiffany Bell is ordered to arbitrate her individual claims. The class claims are dismissed without prejudice. This case is otherwise STAYED pending completion of arbitration. An ADR Review Hearing is scheduled for February 3, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16

		court days before the hearing and may request a continuance if arbitration is not yet complete. Existence of Arbitration Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i>; <i>Perry v. Thomas</i> (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. <i>Gamboa v. Ne. Cmty. Clinic</i> (2021) 72 Cal.App.5th 158, 164–67. At this step, a movant need not follow the normal procedures of document authentication. <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219. If the moving party meets its initial burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, if plaintiff presents evidence that no agreement exists, the burden shifts back to the moving party to present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. <i>Gamboa, supra</i>, 72 Cal.App.5th at 164–67. Here, it is undisputed plaintiff signed the “Arbitration Policy” containing the mandatory arbitration agreement (the “Agreement”). ROA 13 Ex. A. Accordingly, the court finds the parties formed an agreement to arbitrate. Federal Arbitration Act
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		The Agreement expressly provides it is governed by the Federal Arbitration Act (“FAA”). ROA 13 Ex. A at 1. Defendant has also presented undisputed evidence it is engaged in interstate commerce. ROA 13 ¶ 3. The court thus finds the FAA applies and plaintiff does not challenge its application. Delegation to Arbitrator Plaintiff raises several enforceability challenges to the Agreement. However, the court finds the parties unambiguously agreed to delegate such questions exclusively to the arbitrator. Under the FAA, parties to an arbitration agreement may delegate the issue of enforceability to the arbitrator. <i>See Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 70-72. Such a delegation, however, must be “clear and unmistakable.” <i>Id.</i> at 70 n.1. Here, the Agreement provides, in pertinent part, that “[t]he Arbitrator shall have the exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this Agreement; except, however, the preceding sentence shall not apply to the ‘Class Action Waiver’ described in Section 4 below.” ROA 13 Ex. A ¶ 1. Additionally, the Agreement expressly identifies the “applicable rules” are the JAMS employment dispute rules, which provide that the arbitrator shall decide his own jurisdiction. ROA 13 Ex. A ¶ 3; ROA 15 Ex. A, Rule 11(b) (“Jurisdictional and arbitrability disputes, including disputes over the formation, existence, validity, interpretation or scope of the agreement under which Arbitration is sought, and who are proper Parties to the Arbitration, shall be submitted to and ruled on by the Arbitrator. Unless the relevant law requires otherwise, the Arbitrator has the authority to determine jurisdiction and arbitrability issues as a preliminary matter.”). Accordingly, the court finds the Agreement for which specific performance is sought reflects the parties’ clear and unmistakable intent to delegate “interpretation, applicability, or enforceability” questions, other than that of the class action waiver, exclusively to the arbitrator. As the Agreement’s delegation clause is clear and unmistakable, it is enforceable unless it is revocable on state law grounds such as unconscionability. <i>Rent-A-Center, supra</i>,
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		561 U.S. at 72; <i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal. App. 4th 231, 243. “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 113. 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243; <i>see also OTO, L.L.C., supra</i>, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” <i>Armendariz, supra</i>, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. <i>Sanchez v. Carmax Auto Superstores California, LLC</i> (2014) 224 Cal.App.4th 398, 402. Defendant appears to concede the Agreement is a contract of adhesion. Reply at 3. Accordingly, the delegation clause has a small amount of procedural unconscionability due to its inclusion in what the court finds is a contract of adhesion. However, the fact that an agreement is adhesive is not by itself sufficient to render it unenforceable. <i>See Malone v. Superior Court</i> (2014) 226 Cal.App.4th 1551, 1561; <i>Samaniego v. Empire Today, LLC</i> (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause). Plaintiff also argues procedural unconscionability on the basis of oppression. Circumstances showing oppression include (1) the amount of time an employee is given to consider a contract; (2) the pressure exerted on him to sign it; (3) its length and complexity; (4) the employee’s education and experience; and (5) whether the employee had legal assistance.
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		<i>OTO, supra</i>, 8 Cal.5th at 126-27. Here, plaintiff provides no facts or authority that support this argument. For example, while plaintiff states she felt rushed and/or pressured to sign the Agreement, Kristi Robinson, Human Resources Leader for defendant VRC, states that plaintiff was sent the onboarding materials on 04-21-2025 at 9:49 a.m. and signed the Agreement more than 24 hours later, at 4:32 p.m. on 04-22-2025. <i>Compare</i> ROA 27 ¶ 6 <i>with</i> ROA 13 ¶¶ 13-14. This is adequate time to consider the four-page, stand-alone Agreement that was presented at the outset of employment. While the Agreement includes statutory references, it is not, as plaintiff argues, difficult to understand or overly complex. Additionally, plaintiff was provided a copy of the Agreement minutes after signing it and could have, but did not, follow the simple procedure to opt-out of the Agreement completely, which was effective up to 10 days later. ROA 13 ¶ 15 Ex. A ¶ 10. The opt-out provision is given its own numbered paragraph and conspicuously appears on the same page as the Agreement’s signature block. <i>Id.</i> Plaintiff has thus failed to establish any degree of oppression. Irrespective of any degree of procedural unconscionability, however, the delegation clause is valid and enforceable because the court finds it is not substantively unconscionable. The Agreement provides “any dispute relating to the interpretation, applicability, or enforceability of the Class Action Waiver, or any dispute otherwise relating to whether this Agreement precludes a class or collective action proceeding, is not within the jurisdiction or authority of the arbitrator and may only be determined by a court” ROA 13 Ex. A ¶ 1. Relying heavily on non-controlling federal authorities, plaintiff appears to argue that any substantive unconscionability present in other parts of the Agreement render the delegation provision substantively unconscionable. Opp. at 18-20. However, plaintiff fails to explain how any of the other parts of the Agreement “impact” the delegation clause, let alone render it substantively unconscionable. Finally, plaintiff argues the delegation clause is “confusing” and thus substantively unconscionable because the Agreement carves out enforceability of the class action waiver for the court. This argument lacks merit. The Agreement is clear the question “is not within the jurisdiction or authority of the arbitrator and may only be determined by a court.” ROA 13 Ex. A ¶ 1. In other words, the Agreement does not delegate the
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	same issues to both the court and the arbitrator and thus no “inconsistencies” exist. <i>See</i> Opp. at 19-20. Accordingly, while plaintiff purports to do so, she fails to show substantive unconscionability specific to the delegation clause itself and it is thus enforceable. <i>See Aanderud v. Superior Ct.</i> (2017) 13 Cal. App. 5th 880, 895 (“any claim of unconscionability must be specific to the delegation clause”); <i>Malone, supra</i>, 226 Cal.App.4th at 1570 (delegation clause part of arbitration agreement that was contract of adhesion demonstrated “some evidence of procedural unconscionability, which must be accompanied by a high showing of substantive unconscionability in order to result in the conclusion that the delegation clause is unenforceable” but had none and was thus valid); <i>Nickson v. Shemran, Inc.</i> (2023) 90 Cal. App. 5th 121, 133 (when “the employee has challenged the enforceability of the agreement as a whole, not the delegation clause in particular,” and “the delegation to the arbitrator to decide enforceability is clear and unmistakable,” “it is for the arbitrator, not a court, to determine whether the [a]greement is unconscionable.”). Class Action Waiver Per the Agreement, the only remaining issue for the court to resolve is the enforceability of the class action waiver. ROA 13 Ex. A ¶ 4. Per the Agreement, the parties “waive any right for a dispute or claim to be brought, heard, or decided as a class or collective action.” ROA 13 Ex. A ¶ 4. It is well settled that class action waivers are enforceable, as here, in arbitration agreements governed by the FAA. <i>Epic Systems Corp. v. Lewis</i> (2018) 138 S. Ct. 1612, 1616; <i>Iskanian v. CLS Transportation Los Angeles, LLC</i> (2014) 59 Cal. 4th 348, 364. In such cases, the class claims are dismissed without prejudice. Plaintiff argues the class action waiver is overbroad and thus unenforceable as it precludes a claim for public injunctive relief in any forum. Specifically, plaintiff asserts “the only form of injunctive relief permitted under the Agreement is a temporary or preliminary injunction in connection with an arbitrable claims.” Opp. at 17. The Agreement permits the parties to seek temporary or preliminary injunctive relief in court if they wish to do so, but “all determinations of final relief shall be decided in arbitration.” ROA 13 Ex. A ¶ 2. In
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		other words, the Agreement permits plaintiff to seek public injunctive relief in arbitration. Plaintiff provides no authority that a claim for public injunctive relief is a “class or collective action” under California law. Plaintiff also argues the Agreement impermissibly includes a representative PAGA waiver. A wholesale waiver of a PAGA claim is unquestionably unlawful. <i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal. 5th 1104, 1125 (representative portions of PAGA claims cannot be waived). However, the Agreement does not purport to do so as it never mentions PAGA or any “representative” claims. As defendant points out, there is a distinction between a “collective” claim and a PAGA claim, which is representative. <i>See Barera v. Apple American Group LLC</i> (2023) 95 Cal.App.5th 63, 86 (“[T]here was no mention of a representative PAGA claim, which, under <i>Viking River</i>, is distinct from class or collective actions. As such, there was no limitation precluding the representative PAGA claims from being arbitrated in the same proceeding as the individual PAGA claims.”). Accordingly, the court finds the class action waiver is enforceable. Defendant is ordered to give notice of this ruling.
17	30-2025-01535559 Wagner vs. Anaheim Arena Management, LLC	Defendant Anaheim Arena Management, LLC’s unopposed Motion to Compel Arbitration is GRANTED. An ADR Review hearing is scheduled for December 16, 2027 at 9:00 a.m. in Department CX103. The parties are ordered to file a joint status conference report at least 16 court days prior to the hearing. Existence of Agreement to Arbitrate The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i>